

Chaman Prakash v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 January 2021 · Writ-C No. 2551 of 2021 · Writ-C No. 2551 of 2021 · Representation to be heard; recovery stayed four weeks.

HEADNOTE

A theft FIR under section 135 of the Electricity Act, 2003 does not permit the licensee to treat a provisional assessment as the final demand without a hearing. Clause 8.1 of the U.P. Electricity Supply Code, 2005 is the theft procedure for inspection, provisional assessment, hearing and final assessment; the course adopted was de hors section 126 and clauses 6.8/8.1. The consumer cannot be compelled to deposit on the provisional figure. The writ was disposed of without merits, directing a speaking decision on the representation after hearing, with the recovery notice kept in abeyance meantime.

FACTUAL SUMMARY

After an FIR under section 135 of the Electricity Act, 2003 alleging theft, the licensee issued a 14 September 2020 provisional assessment and a 16 October 2020 recovery notice demanding Rs 1,26,457 from Chaman Prakash. He said the checking report and provisional assessment were never served; he learned of the demand from the recovery notice and made a representation on 5 January 2021. The Power Corporation did not dispute that final assessment was made without a hearing.

REUSABLE CONSTRUCTIONS

1. A provisional assessment cannot be treated as the final assessment, and the consumer cannot be compelled to deposit the provisional amount, unless a final assessment is made after considering objections and affording a hearing. ¶ 2
2. Clause 8.1 of the U.P. Electricity Supply Code, 2005 is the procedure for inspection, provisional assessment, hearing and final assessment in a case of theft of electricity. ¶ 2

HOLDING-UNITS

INTERPLAY · UP-2005::8.1

theft-provisional-assessment-hearing

HOLDING

Where assessment follows a section 135 theft FIR, treating the provisional assessment as the final demand without a hearing is de hors section 126 of the Electricity Act, 2003 and clauses 6.8/8.1 of the Supply Code, 2005. Clause 8.1 requires inspection, provisional assessment, hearing and final assessment. The consumer cannot be compelled to deposit on the provisional figure. The licensee was directed to decide the representation by a speaking order after hearing; the recovery notice was kept in abeyance for four weeks or until that decision, whichever is earlier. ¶ 2-3

PRINCIPLE TAGS

126-vs-135-distinct-fields-but-126-still-applies-to-theft

The demand arose from an FIR under section 135, but the assessment and recovery still had to follow section 126 and clause 8.1: a hearing before any final assessment, and no compulsion to deposit the provisional amount. Lead authorities: *Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd.* [2017 (3) AWC 3084]. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND QUANTUM OF THE ASSESSMENT

Writ disposed of without entering into the merits; the licensee was directed to decide the representation after hearing. ¶ 3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> 2017 (3) AWC 3084	Without a final assessment after considering objections and giving an opportunity of hearing, the consumer cannot be compelled to deposit the provisional amount; notices founded only on the provisional assessment are unsustainable.		2	Referred

SCJ-2628 · Chaman Prakash v. State of U.P. · Writ-C No. 2551 of 2021 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.